

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ECUADOR

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Ecuador, grounded in the constitutional rights of nature, the licensing system, and documented campaigns

This guide uses the Ecuadorian legal terms you will actually encounter (los derechos de la naturaleza, la acción de protección, la consulta previa, la consulta popular, and so on), each defined on first use and in the Glossary. It describes the national framework; the decentralized governments (GADs) at the provincial, cantonal, and parish levels have their own roles — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end of this guide.**

A note on money. Ecuador uses the **US dollar** as its currency, so all budgets in this guide are in US dollars (USD, \$).

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who decides, when the decision is final
5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
6. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
7. **STEP 4: LEGAL CHALLENGES** — Using the rights of nature, the protection action, and consultation
8. **STEP 5: MEDIA STRATEGY** — How to generate coverage (journalist relationships, newsworthiness, measurement)
9. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
10. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers (honest mechanics and assessment)
11. **WHEN IT'S ACTUAL CORRUPTION** — Spotting, documenting, and exposing genuine misconduct
12. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
13. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess
14. **GLOSSARY** — Key terms, defined and listed alphabetically

INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Ecuador. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. When mining permits were granted in the **Los Cedros** cloud forest, a nearby municipality went to the **Constitutional Court** — and in 2021 the Court ruled that the permits violated the **rights of nature**, prohibited mining, and ordered the authorizations revoked. Two years later, in a national referendum, Ecuadorians voted to **keep the oil in the ground** in a block of the Amazon's Yasuní National Park. Across the country, communities, Indigenous peoples, and campaigners using the **rights of nature**, the **protection action (acción de protección)**, **consultation**, and **popular referendums** have forced projects to be refused, revoked, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They attend one meeting, then give up. They assume "the Ministry will refuse it" without building public pressure, documenting the harm, or filing a protection action. They generate coverage without a strategy. They organise people and then lose them to burnout — or to fear — after a few months.

This guide shows what actually works — in the Ecuadorian system. It also takes seriously that opposing extraction in Ecuador can carry real risks, including criminalisation (Section 9).

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

↓

STEP 2: DOCUMENTATION (proof of harm)

↓

STEP 3: LOCAL OPPOSITION BUILD (organised community)

↓

STEP 4: LEGAL CHALLENGES (rights of nature / protection action)

↓

STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)

Each step amplifies the others

Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: Ecuador gives communities a lever found almost nowhere else. In 2008 it became the **first country in the world to enshrine the rights of nature in its Constitution** — nature, or **Pachamama**, has the constitutional right to exist and to maintain and regenerate its cycles, and **any person, community, people, or nationality can go to court to defend nature's rights**, without having to show personal harm. The fast **protection action (acción de protección)** is the vehicle — it is what stopped mining at **Los Cedros**. Add the **precautionary principle** (in dubio pro natura — when in doubt, favour nature), the right to **consultation**, and the **popular referendum** that stopped drilling in **Yasuní**, and Ecuador's toolkit is distinctive and powerful. No Ecuadorian campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because Ecuador depends heavily on oil and mining revenue, because **the state itself is often the developer** (through the state mining and oil companies), or because the developer's own consultants prepare the environmental study.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins revocations, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed conflict of interest, the offences the oversight bodies handle — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them — and read Section 9 on safety — before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Ecuador, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Ecuador is a unitary state with a national government and **decentralized autonomous governments (GADs)** at the provincial, cantonal (municipal), and parish levels.

- **National government** — the **Ministry of Environment, Water and Ecological Transition (MAATE)** issues the **environmental permit** that projects need; the mining and energy ministries and the mining regulator grant concessions; and — distinctively — the **state companies** (the state miner and the state oil company) are often the developers themselves.
- **Decentralized governments (GADs)** — provinces, cantons (municipalities), and parishes — have environmental and land-use competences, run local planning, and **can themselves defend the rights of nature in court** (a municipality brought the **Los Cedros** case).

So which body decides *your* project?

- A mine, oil project, dam, road, or major development → an **environmental permit** from **MAATE**, based on an **environmental impact study (EIA)** — plus a concession from the mining or energy authority.
- Anything affecting an **Indigenous or Afro-Ecuadorian people or nationality** → their **prior consultation (consulta previa)**, under the Constitution and **ILO Convention 169**.
- Anything in a **protected area, an intangible zone, or a protected forest** → the strict constitutional limits on extraction there (Article 407) — the Los Cedros ground.

The expert and decision bodies

- **MAATE** — evaluates the environmental study and decides the permit.
- **The mining/energy authorities and independent experts** — grant concessions and assess effects.
- **The Constitutional Court, the ordinary courts, and the oversight bodies** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the permit journey

For a project that may affect the environment, the developer must obtain an **environmental permit** from **MAATE** under the **Environmental Code (Código Orgánico del Ambiente)**:

1. **Study and application** — the developer files the **EIA**.
2. **Participation and consultation** — an **environmental consultation (consulta ambiental)** of the affected community is required, and, where Indigenous peoples are affected, a **prior consultation (consulta previa)**. Attend, speak, submit comments, and record who was (and wasn't) consulted.
3. **Decision** — MAATE **grants, conditions, or denies** the permit.
4. **Challenge** — the permit can be challenged by a **protection action (acción de protección)** — the fast constitutional route, and the rights-of-nature vehicle — and by administrative routes.

A **defective EIA, a skipped or flawed consultation, harm to a protected area or forest, or a violation of the rights of nature** are among the strongest grounds to stop or revoke a project.

The rulebook — the laws that decide the outcome

- **The 2008 Constitution** — the **rights of nature** (Pachamama) (Articles 71-74), enforceable by **anyone** (Article 71); the right to a **healthy environment** and **buen vivir / sumak kawsay** (Articles 14 and 66); the **precautionary principle** and **in dubio pro natura** (Articles 395-397); the ban on extraction in **protected areas and intangible zones** (Article 407); **prior consultation** (Article 57) and **environmental consultation** (Article 398); the **protection action** (Article 88); the **popular referendum** (Article 104); and the right to **information** (Article 18).
- **The Environmental Code (Código Orgánico del Ambiente, COA)** and its regulations — the permit and EIA system.
- **The Mining Law and the Water Law; ILO Convention 169.**
- **The Transparency and Access to Information Law (LOTAIP)** — the right to information.
- **The Escazú Agreement** — access to information, participation, justice, and protection of defenders — which Ecuador has ratified.

Follow the money — why the system often leans toward "yes"

- **Ecuador depends heavily on oil and mining revenue** — crude oil has long been the country's largest export — so there is strong central pressure to extract.
- **The state itself is often the developer**, through the state mining and oil companies — a distinctive tilt, because the government has a direct financial stake in the project it is also meant to regulate.
- **GADs** compete for investment and jobs.
- The **environmental study is prepared by the developer's own consultants**, so it tends to read in the project's favour.
- Refusals are relatively rare; most projects that reach a decision are permitted, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Constitutional Court (Corte Constitucional)** — which has built the world's leading **rights-of-nature** case law (Los Cedros, and others); the ordinary and contentious-administrative courts.
- **The Function of Transparency and Social Control** — a distinctive branch of the Ecuadorian state that includes the **Comptroller (Contraloría General del Estado)** (fiscal control), the **Ombudsman (Defensoría del Pueblo)**, and the citizen-participation council; and the **Attorney-General / Fiscalía** (criminal prosecution) (see Section 11).
- **MAATE** — which can also review and revoke permits.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Ecuador, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a violation of the **rights of nature**, a defective **EIA**, a missing **consultation**, or harm to a **protected forest** — carried through the **protection action** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (USD)	What "Success" Means
Documentation Only	5-10%	3-4 months	\$35,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	\$95,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	\$5,000-30,000	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	\$35,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	\$120,000	Slowed, some modifications

Docs + Legal	30-40%	12-18 months	\$150,000	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	\$180,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	\$120,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	\$200,000	Permit revoked/refused/modified or project halted

Key insight: All five steps together = 3-4x more effective than any single step.

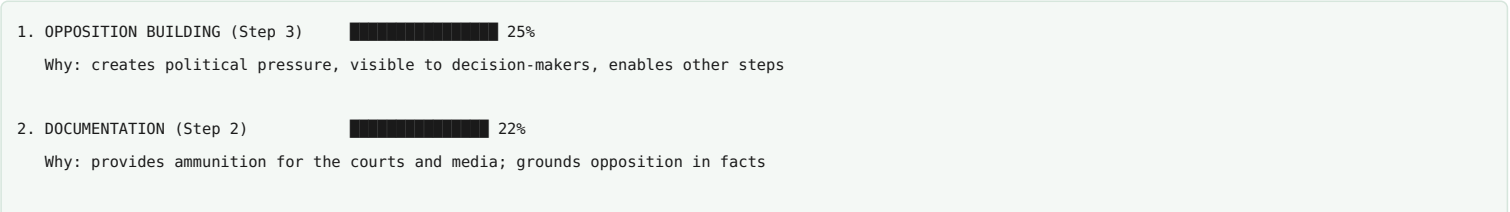
A note on legal cost: the protection action is meant to be fast, accessible, and requires no special standing — anyone can bring it to defend nature's rights — and public-interest organisations (such as Acción Ecológica, INREDH, and university legal clinics) take these cases, often at no charge. So the "Legal" figures are not a hard floor. The main cost is expert evidence.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a **violation of the rights of nature** in a fragile or protected ecosystem, a defective **EIA**, or a missing **consultation** — can lead the **Constitutional Court** (through a protection action) to revoke a permit and halt a project even where the politics favour it, because it is applying a constitutional standard the authorities cannot ignore. That is exactly what happened at **Los Cedros**. (A revoked permit and even a national referendum can be resisted or slow-walked by the authorities — as the delayed compliance with the Yasuní vote shows — so an early win may need defending and enforcing.)

Step Importance Ranking (When All Combined)



3. MEDIA STRATEGY (Step 5)	20%
Why: makes opposition/legal/documentation visible, creates political cost	
4. LEGAL CHALLENGES (Step 4)	18%
Why: the protection action can revoke a permit – and holds the rights-of-nature and consultation levers	
5. TARGET ID (Step 1)	15%
Why: foundation – if wrong, everything fails	

Real insight: a large, organised, visible community that has also documented the harm to a fragile ecosystem and turned out for the **consultation** is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4
Cost: \$0
Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"
But: "The mine threatens a cloud forest that is home to [named endangered species] and the water sources that supply [number] families — a fragile ecosystem the rights of nature protect."

Not: "Pollution"
But: "The project will discharge [X] into the [named] river, over the farming and fishing that [community] depends on."

Not: "Community harm"
But: "The project crosses the territory of the [Indigenous nationality] without the **prior consultation** the Constitution requires."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to a **fragile or protected ecosystem**, an **endangered species**, a **water source**, or an **Indigenous territory** also opens a **specific legal front** — and the **rights of nature** are strongest exactly where extinction or ecosystem destruction is at stake (Article 73).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **MAATE** — for the **environmental permit**.
- **The mining/energy authority** — for the concession.
- **The affected community / Indigenous people** — whose **consultation** is required, and the **GAD** for local competences.

Write it down concretely: "MAATE will decide the environmental permit after the EIA and the consultation. The project sits in a protected forest and affects an Indigenous territory, so Article 407 and prior consultation apply — and any permit can be challenged by a protection action on rights-of-nature grounds."

Question 3: What Specific Action Stops It?

Not: "Stop the project"
But: "Persuade MAATE to deny the permit, or win a revocation through a protection action on rights-of-nature grounds" — or, if refusal is unrealistic, "obtain strict conditions, real restoration, and a redesign."

Not: "Protect the environment"
But: "Show the project violates the **rights of nature** of [the forest/river], the **EIA** is defective, or the **consultation** was skipped, and file a protection action."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **EIA** is filed, the **consultation**, and the permit decision. Don't wait: turn people out for the consultation (and record its gaps), request the documents early (use the **information law**), and be ready to move — a **protection action** can be filed whenever a constitutional right (including the rights of nature) is threatened, and is meant to be fast.

Question 5: Are There Documented Financial or Policy Pressures?

- This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project a **state-run** oil or mining project, or a "strategic" priority, hardening its backing?
 - Is the **EIA** prepared and paid for by the developer's own consultants only?
 - Does the government depend on the project for revenue, and the GAD for jobs?
 - Is the developer a state company or a large multinational with deep resources?
 - Is there a security or **criminalisation** risk to organisers (see Section 9)?

Why this matters: if strong extraction-revenue backing, state ownership, or developer-controlled studies are present, opposition must overcome different barriers (Section 10) — and, in Ecuador, you must also weigh the **safety and criminalisation** risks (Section 9). It doesn't mean opposition can't work — Los Cedros and Yasuní both fell against state-backed extraction — it means realistic expectations and a focus on the **rights of nature**, the **EIA**, and the **consultation** defects, on conditions, and on the **courts** and, where available, a **referendum**.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
Cost: \$35,000-55,000 (USD)
Outcome: Three polished reports (30+ pages total) showing specific, quantified harms
- Success Rate (Documentation Alone):** 5-10%
Success Rate (Documentation + Opposition): 25-35%
Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together — and, in Ecuador, documenting harm to a **fragile ecosystem or an endangered species** is doubly powerful, because it triggers the **rights of nature** and the **precautionary principle**.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including the species and ecosystems present, and who lives on and uses the land and waters.
- Why it matters:** developers claim "the land is unproductive" or "the impact is minor." Baseline documentation proves what was there — and in Ecuador, proving the presence of **endangered species or a fragile ecosystem** engages the strongest constitutional protection there is.

Documented case — Los Cedros and the rights of a cloud forest

Ecuador's Ministry of Environment granted mining-exploration permits to the **state mining company** and its foreign partner across two-thirds of the **Los Cedros Protected Forest** — thousands of hectares of Chocó-Andean cloud forest, home to the endangered brown-headed spider monkey, the spectacled bear, rare frogs, and dozens of orchid species. Its backers treated it as a copper-and-gold prospect. The opposition made that impossible. Working with the nearby municipality of **Cotacachi**, and with scientists and campaigners, the community documented what the forest held — the endangered and endemic species, the water sources, the ecological value — and argued the permits violated the constitutional **rights of nature**, the right to **water**, a **healthy environment**, and **consultation**.

It changed the outcome. On 1 December 2021, the **Constitutional Court** ruled the permits **unconstitutional, prohibited mining** and all extraction in Los Cedros, and ordered the **authorizations revoked** — holding that nature's rights are self-executing guarantees across the whole country, and that where an activity risks severe or irreversible harm to species and ecosystems, **the precautionary principle means nature prevails**. The documented presence of endangered species in a fragile forest was the hinge. (Honesty matters here: the state company sought to narrow the ruling, and enforcing these victories on the ground is an ongoing struggle — a win must be defended.)

Why it matters for you: the documentation of Los Cedros's species and ecosystems — tied to the constitutional rights of nature — was decisive. Documenting existing conditions, especially endangered species, fragile ecosystems, and water sources, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the impact is minor and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a **species and ecosystem inventory** with GPS locations, flagging anything **endangered, endemic, or in a fragile/protected ecosystem** that the developer's **EIA** omitted — this is the sharpest lever, because it engages the rights of nature and

the precautionary principle; a record of who occupies and uses the land — farming, and whether it is an **Indigenous territory** (the basis of a **consultation** right); the **water sources** the community depends on; proximity to any protected area, forest, or intangible zone (Article 407); and water and air baselines. Typical cost is around \$30,000-45,000 for a qualified ecologist/biologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **rights of nature**, the **EIA**, and the consultation rules require.

Use the developer's own words and the legal tests. Powerful, documentable weak points in Ecuadorian assessments include:

- **A violation of the rights of nature.** Where the project would cause severe or irreversible harm to a species or ecosystem, the **rights of nature** and the **precautionary principle** (in dubio pro natura) are the strongest ground — as at **Los Cedros**.
- **A defective EIA.** The study must genuinely assess the significant impacts, alternatives, and mitigation. Omissions or understatements are strong grounds.
- **A missing or flawed consultation.** For an **Indigenous people**, a genuine **prior consultation** is required; for an affected community, an **environmental consultation**. Their absence is a strong ground.

Convert each of the developer's admissions ("temporary disturbance," "limited effect") into a quantified prediction against your baseline.

Outcome (illustrative): a **rights-of-nature** violation, a defective **EIA**, or a missing **consultation** can lead a court to revoke the permit and halt the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and \$X of health cost" — or "the water and farming that sustain [number] families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or resource loss into health and livelihood outcomes, then attach costs — additional respiratory and gastrointestinal cases, lost farming and fishing income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a GAD or the national government, feed the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a qualified ecologist/biologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND species/ecosystems, human occupation, Indigenous-territory status, and water sources. **Deliverable:** a 20-30 page baseline report with species/ecosystem inventory, a record of use and rights, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA** and the permit file (use the **information law**); identify specific impacts; test the study against the rights of nature, the EIA rules, and the consultation. **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the permit.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Missing the species/ecosystem angle.** The endangered-species and fragile-ecosystem grounds are the sharpest in Ecuador —

- they engage the rights of nature — so look hard for them.
- **Ignoring the developer's own admissions.** Their **EIA** is your best source; quote it against itself. Use the **information law** to get it and the file.

Documentation Budget Breakdown (USD)

Item	Cost	Notes
Ecologist / biologist (baseline + species ID)	\$30,000	Endangered-species and ecosystem survey — the key lever
GPS / survey equipment	\$2,500	Mapping/documentation
Water/air testing	\$5,000	Sampling across seasons
Independent / university expert review	\$4,500	Credibility
Printing / information requests / translation	\$2,000	Copies (and Kichwa/Shuar translation where relevant)
TOTAL	\$44,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~\$95,000 (USD) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out — or is frightened into silence — after 4-8 months. You need structures that prevent it, and (in Ecuador) that protect people. The Yasuní campaign held together for over a decade — that endurance is what won. Read Section 9 on safety alongside this step.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, farming, health, the forest, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farming, displacement and compensation
- **Water group** — the rivers, springs, and watersheds, contamination
- **Health group** — air quality, water quality, disease
- **Nature/rights group** — endangered species, the forest, and the **rights-of-nature** case (with the community and any Indigenous authorities)

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Community's Own Structures and Register a Vehicle

Two things matter. First, Ecuadorian communities have strong structures — the **comuna** and the community assembly, the **junta de agua** (water board), campesino associations, and, for Indigenous peoples, their **nationalities and communes** and organisations (locally and through **CONAIE/CONFENIAE**), whose authorities carry weight and hold the **consultation** right; a clear, recorded community position carries weight. Second, a registered organisation (a **fundación** or **corporación**) can speak publicly, receive donations, and support litigation; partner with established organisations (such as Acción Ecológica, INREDH, or YASunidos) early. And remember: **the GAD (your municipality or province) can itself bring a rights-of-nature case** — Cotacachi did at Los Cedros — so winning over a sympathetic local government is powerful.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community assembly / asamblea)

Hold a community assembly (**asamblea**) where people set out their concerns to themselves, to the GAD authorities, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in plain Spanish (and Kichwa or the relevant language). Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the parish office, churches, health posts; post a digital version. Cost: ~\$2,500.

Step 2c: Consultation, the Recorded Community Position, and the Rights-of-Nature Frame (the decisive record)

Two things matter most here. First, when the **environmental consultation** (and, for Indigenous peoples, the **prior consultation**) is held, **turn people out to attend, speak, and submit comments**, each raising real grounds — a violation of the rights of nature, harm to species/water, a defective EIA — and **document the process** (who was invited, what information was shared, who was left out). Second, secure a clear, formally **recorded community position** against the project, and frame the harm in **rights-of-nature** terms (the forest, the river, the species have rights). Together these build the record a court takes seriously. Cost: ~\$2,000.

Step 2d: Media Coverage at Launch

Release data + concerns + the recorded position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — **Acción Ecológica**, **INREDH**, **YASunidos**, the **Observatorio de Derechos de la Naturaleza**, Amazon and Indigenous organisations (**CONAIE**, **CONFENIAE**, and local nationalities), university science and law departments, the church (which carries real weight), water boards and campesino associations, and businesses that lose from the project — and a **sympathetic GAD**. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks:

- **Acción Ecológica / INREDH / a legal clinic:** "Help us prepare a protection action on rights-of-nature grounds — can you assist?"
- **A university group:** "Would your biologists document the endangered species independently?"
- **An Indigenous organisation:** "Help us insist on a genuine prior consultation and record the community's position."
- **A sympathetic GAD:** "Would the municipality bring a rights-of-nature case, as Cotacachi did for Los Cedros?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, security protocols, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: the species/ecosystem and rights-of-nature analysis to the NGO/university; the Indigenous territory and consultation to the community and its organisations; livelihood to the campesino and water groups; media to whoever has the contacts; the legal track to the law group and a sympathetic GAD. Sequence activities so each builds momentum (coalition launch → data release → recorded position → protection action).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline — safely.

Step 4a: Public Demonstrations (marches / plantones)

Regular, same time and place, growing attendance — outside MAATE, the GAD, or in the town square. Handle logistics and **safety**: any required notice, marshals, accessibility, a sound system, and a security and legal-support protocol (Section 9 — criminalisation is a real risk in Ecuador). Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (recorded position → the endangered-species finding → coalition growth → march → protection action filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout and fear (Months 4-8). Prevent burnout: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator; schedule breaks; keep a public progress tracker. And take **fear** seriously — criminalisation and intimidation are real in Ecuador; a shared security and legal-support protocol, collective decision-making, and links to human-rights organisations (Section 9) keep people safe and in the fight.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that Indigenous peoples decide by their own authorities — and be alert to developers trying to split a community with jobs, "development" offers, or by co-opting some leaders; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (coalition launched, community position recorded, a large asamblea, a sympathetic GAD on board, the protection action filed) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (USD)

Item	Cost
Factsheet printing	\$4,000
Website/phone/data (annual)	\$3,000
Meeting / venue costs	\$5,000
Outreach travel (often remote, difficult terrain)	\$8,000
Consultation / recording materials	\$2,000
Demonstration supplies (banners, sound)	\$7,000
Coalition meeting costs	\$5,000
Part-time coordinator (12 months)	\$48,000
Social-media / content (part-time, 3 months)	\$10,000
Fundraiser/event / security costs	\$5,000
TOTAL	\$97,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered organisation can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~\$48,000; and the **protection action** requires no special standing and public-interest organisations often act at no charge.

STEP 4: LEGAL CHALLENGES — THE RIGHTS OF NATURE, THE PROTECTION ACTION, AND CONSULTATION

Time to complete: the protection action is meant to be fast; cases run 3-24 months, and reaching the Constitutional Court can take longer
Cost: \$5,000-30,000 (USD; the protection action needs no special standing and can be low-cost)
Outcome: a permit revoked or refused, a project halted, conditions, or a project shelved

Representation impact:
- Experienced constitutional/environmental lawyers or a public-interest law group: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **A key advantage:** the **protection action** requires **no special standing** — **anyone** can bring it to defend nature's rights — and public-interest organisations (Acción Ecológica, INREDH, university clinics) take these cases, often at no charge. A **sympathetic GAD** can also bring the case, as Cotacachi did at Los Cedros.

Success Rate (Legal Only): 20-30%
Success Rate (Legal + Opposition + Media): 60-70%

Ecuadorian legal strategy has three tracks, and its constitutional toolkit — led by the **rights of nature** — is distinctive and powerful.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before the courts.

- **Turn out for the consultation.** Attend the **environmental consultation (consulta ambiental)** and, for Indigenous peoples, insist on a genuine **prior consultation (consulta previa)**; speak, submit comments, and **document the process** (who was invited, what information was shared, who was left out).
- **Use the information law.** Request the **EIA**, the permit, and the file from MAATE under the **Transparency and Access to Information Law (LOTAIP)** — and, if refused, the constitutional **information-access action**.
- **Record the community's position.** A clear, formally recorded **community position** — and, for a comuna or nationality, its assembly's decision — carries weight.

Why this track matters: using the consultation and the information law well — specific, recorded, grounded in the law and the evidence — often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: THE RIGHTS OF NATURE, THE EIA, AND CONSULTATION (the strongest cards)

Several grounds make this powerful.

- 1. The rights of nature (and the precautionary principle).** This is Ecuador's signature ground. Nature has the **constitutional right** to exist and regenerate (Articles 71-74), and **anyone** can defend it. Where a project would cause **severe or irreversible harm to a species or ecosystem** — especially in a fragile or protected forest — the rights of nature and the **precautionary principle (in dubio pro natura)** mean nature can prevail, and the **burden shifts** toward the developer to prove no serious harm. This is the ground that stopped **Los Cedros**.
- 2. A defective EIA, or harm to a protected area (Article 407).** The **environmental study** must genuinely assess impacts and alternatives; and extraction in **protected areas and intangible zones is constitutionally restricted** (Article 407). Documenting these is powerful.
- 3. A missing or flawed consultation.** For an **Indigenous people**, a genuine **prior consultation** is required (Article 57, ILO 169); for an affected community, an **environmental consultation** (Article 398). Their absence is a strong ground.

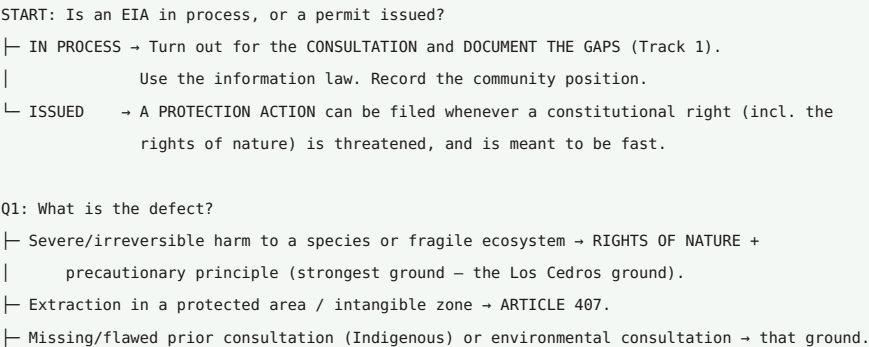
TRACK 3: THE PROTECTION ACTION, INTERIM MEASURES, AND THE REFERENDUM

Match the tool to the goal:

- **The protection action (acción de protección)** — the **fast, accessible constitutional action** (Article 88) to protect constitutional rights, including the **rights of nature**; **no special standing** is needed, and the **Constitutional Court** can select and review cases, as it did in **Los Cedros**. This is the primary route.
- **Interim measures (medidas cautelares).** Where harm is imminent, ask the court for **precautionary measures to halt the works** while the case runs — often the most urgent step.
- **The Constitutional Court (Corte Constitucional)** — the ultimate forum for the rights of nature, with a growing body of protective case law.
- **The popular referendum (consulta popular).** Distinctively, Ecuadorians can — through a citizen- or authority-initiated **referendum** — vote directly to stop extraction, as they did for **Yasuní** and the **Chocó Andino** in 2023. This is a long, demanding route (signature drives and legal battles over the question), but a uniquely powerful one where a project has national resonance.

Be realistic about three things. First, **the state is often the developer**, so a project can have the full weight of the government behind it — lead with the cleanest constitutional ground (the **rights of nature**). Second, **enforcement is uneven**: even a won case or a binding referendum can be resisted or slow-walked — the **Yasuní** vote was won in 2023 but only partly implemented years later — so a victory must be **defended and enforced**, keeping opposition and media pressure alive. Third, the **constitutional framework itself is politically contested**: there have been moves to rewrite the Constitution that campaigners fear could weaken the rights of nature — so get **current advice** on the state of the law.

Legal Strategy Decision Tree



- └ Defective EIA → that ground.
- └ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Who can bring it?

- └ ANYONE – the protection action needs no special standing; a person, a community, an Indigenous people, an NGO, or a sympathetic GAD (as at Los Cedros).

Q3: Is harm imminent?

- └ YES → seek INTERIM MEASURES (medidas cautelares) to halt the works.

Q4: Does the project have national resonance and no legal defect?

- └ Consider the long road of a POPULAR REFERENDUM (as at Yasuní) – demanding but powerful.

RECOMMENDED PATHS

Path A – Clear rights-of-nature/consultation defect: protection action + interim measures + Track 1 record + information-law file + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.

Path C – No legal defect but national resonance: opposition + media + (potentially) a referendum.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a **rights-of-nature** violation in a fragile ecosystem, or a missing **consultation** — can exceed these (as at Los Cedros), though enforcement must then be pressed.

A court that sees a genuine constitutional defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Underusing the rights of nature.** In a fragile or protected ecosystem, it is the strongest ground there is — document the species and lead with it.
- **Not seeking interim measures.** Without them, the works may be done before the case ends.
- **Assuming a win enforces itself.** In Ecuador it often doesn't — plan to defend and enforce it.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The permits violate the rights of nature of this forest and its endangered species" is a ground a court can act on — it stopped Los Cedros.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign

Cost: ~\$35,000 (USD) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%

Success Rate (Media + Opposition + Documentation + Legal): 60-75%

Ecuador has a national press, a growing independent and investigative sector, strong Indigenous and community media, and very heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Los Cedros and Yasuní fights became national and international stories, and that visibility raised the political cost of the projects. (A safety note: journalists and communicators covering extraction conflicts face risks in Ecuador — see Section 9.)

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.
- **Good:** "Biologists documented an endangered spider monkey and rare frogs in the forest the mine would clear; the community has filed a protection action on rights-of-nature grounds; the court decides soon." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **Indigenous/community radio** — the audience that reaches your GAD and national officials.
- **National outlets** — *El Universo*, *El Comercio*, and *Primicias* — for projects with wider significance.
- **Investigative and independent outlets** — *Plan V*, *GK*, *La Barra Espaciadora*, *Wambra*, and **Mongabay Latam** — for deeper reporting on permits, extraction, and Indigenous rights.
- **Social media** — powerful in Ecuador — plus international outlets for landmark cases (as at Los Cedros and Yasuní).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, mining/oil, Indigenous-rights beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, an information-law document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (the recorded community position / the species finding)
- Month 3: press event releasing the survey/information findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: court-date coverage

Real Media Dynamics (Ecuadorian grounding)

- **Coverage plus mobilisation shifts outcomes:** the Yasuní fight combined a decade of Indigenous and youth organising and documentation with sustained national and international coverage that helped carry a national referendum; the Los Cedros case drew global attention to the rights of nature.
- **Information documents make stories:** a disclosure that contradicts the developer's claims — an EIA that ignored endangered species, a "consultation" no one attended — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent biological or health analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **information request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [MAATE / the court] decides [date]

Estimado/a [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [information-law documents / the community's recorded position / an independent survey] show [quantified finding – e.g. "the EIA never recorded the endangered spider monkey in the forest the mine would clear"], and [MAATE / the court] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an endangered species]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Saludos,
[Name] – [Organisation] – [phone] – [email]

8B. Letter to MAATE, the GAD, or an Assembly member

Subject: [Deny / revoke] the permit for [project] – file [ref]

To [the Minister of Environment (MAATE) / the Mayor or Prefect (GAD) / the Assembly member],

I am a resident of [place] writing about the [project], on which a decision (the environmental permit) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the project would cause severe, irreversible harm to a protected cloud forest and its endangered species, violating the rights of nature, and the community was never properly consulted"].

I am asking you to [specific, achievable action – e.g. "deny the permit," or "require strict conditions, real restoration, and a redesign"] – and, [to the GAD:] to consider defending the rights of nature in court, as Cotacachi did for Los Cedros.

[If true:] The affected community has recorded its opposition; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Atentamente,
[Name], [address], [phone], [email]

8C. Consultation submission + recorded community position (rights-of-nature frame)

PART A – WRITTEN SUBMISSION (environmental consultation)

To: [MAATE / the EIA consultant], re [project]

Submission on the [project]. Consultation held/requested [date].

1. Who I am: [name], [community], [interest].
2. Grounds (with evidence):
 - a. [Rights of nature] – the project would cause severe/irreversible harm to [ecosystem/species], violating the rights of nature; the precautionary principle applies. (Attach the species/ecosystem evidence.)
 - b. [Defective EIA] – the study omits [impact], understates [impact], ignores [the forest/water source] documented here.
 - c. [Consultation / Article 407] – [no prior consultation of the [people]] / [the project lies in a protected area or forest].
3. What I ask: that the permit be DENIED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORDED COMMUNITY POSITION (assembly / comuna / nationality)

"The [community/comuna/nationality], through its assembly, records that it OPPOSES the [project] and does not consent to it, because it violates the rights of nature of [the forest/river] and threatens [water/livelihood/territory]. Recorded [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation or a sympathetic GAD)

Subject: [Organisation/GAD] + [project] – a specific ask that fits your work

Estimado/a [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake – e.g. "would clear a protected cloud forest home to endangered species, violating the rights of nature"]. I'm getting in touch because this connects directly to [your work / your community's territory].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us prepare a protection action on rights-of-nature grounds," or "have your biologists document the endangered species," or – to a GAD – "consider bringing a rights-of-nature case, as Cotacachi did for Los Cedros"].

If helpful, I can send a one-page brief and arrange a short call.

Con gratitud,
[Name] – [Organisation] – [contact]

8E. Public-information request (the transparency tool)

To: [MAATE / the authority], Attn: the Public Information Unit

REQUEST UNDER THE TRANSPARENCY AND ACCESS TO INFORMATION LAW (LOTAIP)

Under the LOTAIP and Article 18 of the Constitution, I request the following concerning [project] (ref [ref]):

1. The environmental impact study (EIA) and the environmental permit (with conditions).
2. The record of the environmental consultation and, for an Indigenous people, the prior-consultation record.
3. The technical/expert reports and MAATE's reasons for its decision.
4. For mining/oil: the concession title and any protected-area/forest overlap.
5. The correspondence between [the authority] and [the developer/state company], [dates].

Please respond within the legal timeframe. If any information is refused, please state the legal basis; I may pursue the constitutional information-access action.

[Name] – [address] – [date]

8F. Legal challenge — protection action / interim measures (anyone can bring it; get advice)

NOTE: The PROTECTION ACTION (acción de protección) needs NO special standing – ANYONE can bring it to defend the rights of nature – and is meant to be fast. Seek INTERIM MEASURES (medidas cautelares) to halt works if harm is imminent. Be ready to DEFEND and ENFORCE any win. Get current advice – the constitutional framework is contested.

[PROTECTION ACTION – heading/form as advised; keep it accessible]

[Date]

Petitioner(s): [any person / community / Indigenous people / NGO / GAD], [address].

Against: [MAATE / the state company / the authority] – for [the permit [ref] / the act].

1. Constitutional rights violated or threatened:
 - The RIGHTS OF NATURE (Arts. 71-74) of [the forest/river/ecosystem] – severe/irreversible harm; the precautionary principle (in dubio pro natura) applies.
 - The right to a healthy environment / water / prior consultation.
 - [Article 407 – extraction in a protected area/forest.]
2. Relief: protection of the rights; REVOCATION of the permit; and INTERIM MEASURES (medidas cautelares) to halt the works meanwhile.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local organisation] released [study / information-law documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / an endangered species / a protected forest].

- KEY FINDINGS
- [Quantified impact with citation]
 - [Quantified impact with citation]
 - [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[MAATE / the court] decides on [date].

[CALL TO ACTION] To support or add your submission: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]
ATTACHMENTS: full report, information-law documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the protection action, the rights of nature and standing, consultation, interim measures, the referendum route, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because Ecuador depends heavily on oil and mining revenue, because **the state itself is often the developer**, or because the developer's own consultants prepare the environmental study. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway. **In Ecuador, this section also carries an important safety warning, above all about criminalisation.**

Important Caveat

This section describes patterns from documented Ecuadorian dynamics and public policy — extraction-revenue pressure, state-owned developers, developer-funded studies, rarely-refused permits, and uneven enforcement of victories. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (oil and mining revenue, jobs, "strategic" priorities); put the **state on both sides** — as developer and regulator; bias information (the **EIA** is commissioned by the developer); advantage well-resourced developers; and make **enforcement of victories uneven** (a won case or referendum can be slow-walked, as with Yasuní).
DOESN'T: guarantee approval; make opposition impossible; remove the **rights of nature** or the **protection action**; remove **consultation** rights or the **referendum** route; or prevent revocations, conditions, and delay. **Los Cedros and Yasuní both went against state-backed extraction — and both were won.**

Two honest, current cautions. First, **enforcement:** winning is not the end — the **Yasuní** referendum was won in 2023 but only partly implemented years later, so plan to **defend and enforce** any victory. Second, **the framework is contested:** there have been political moves to rewrite the Constitution that campaigners fear could weaken the rights of nature — so get **current advice** on the state of the law before you rely on it.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner (lead with the **rights of nature**), and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary permit with genuine scrutiny; no "strategic" label; a clear defect; an endangered species, a fragile ecosystem, a protected area, or an Indigenous territory engaged. → 65-75% with all 5 steps. Proceed with standard opposition — mindful of safety.

YELLOW FLAG (moderate tilt): an extraction-revenue push and a developer-funded **EIA**, but independent evidence is possible and a legal ground (rights of nature, consultation, EIA) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the rights-of-nature and consultation grounds.

RED FLAG (high tilt): a **state-run** oil or mining project of "strategic" priority, developer-only studies, heavy backing. → 25-30% to stop; 50-60% to modify/delay. Weigh whether delay/conditions justify the investment **and the risk**; lead with the cleanest ground; build power and a record for the next round. (Los Cedros was red-flag — state miner, national priority — and it fell.)

Direct Action and Safety: The Criminalisation Warning

When permit and legal routes are exhausted, some Ecuadorian communities have used non-violent direct action — marches, blockades, and occupations. This is descriptive of what has occurred, not guidance — and in Ecuador it comes with a serious safety warning, the sharpest edge of which is **criminalisation**.

Ecuador has a well-documented record of criminalising environmental and Indigenous defenders. Organisers and community leaders — especially those opposing mining and oil, and Indigenous leaders during national protests — have been **prosecuted on serious charges** such as sabotage, terrorism, obstruction, or organised crime, often on thin evidence, in ways that drain, intimidate, and stigmatise movements. On top of this, defenders face **threats and intimidation**, and Ecuador's **general security situation has deteriorated sharply** in recent years. This danger must shape everything. Anyone considering organising or direct action should treat safety as a priority: **keep everything strictly non-violent and lawful; never act alone; agree a security and legal-support protocol from the start; document everything; line up criminal-defence lawyers in advance** (criminalisation is the likeliest legal threat you face); **connect early to human-rights organisations** — such as **INREDH** and the **Alianza por los Derechos Humanos** — and to the **Ombudsman (Defensoría del Pueblo)**, who can provide legal aid and rapid response if organisers are charged or threatened; and use the protections of the **Escazú Agreement**, which Ecuador has ratified and which obliges the state to protect defenders. **If you are charged, threatened, or detained, treat it as urgent: contact a lawyer and your human-rights networks immediately, and document everything.** Direct action has drawn attention and delay in documented cases, but on its own rarely stops a project permanently; combined with documentation, the rights-of-nature case, the protection action, and media, it is far more consequential — and safer.

Honest Assessment

Where the system is tilted, opposition using permit and legal methods has lower odds of an outright stop — but still reliably wins revocations or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And Ecuador offers a genuinely world-leading equaliser: **constitutional rights of nature** that **anyone** can enforce, the fast **protection action**, the **precautionary principle**, the right to **consultation**, and — uniquely — the **referendum** that stopped drilling in Yasuní. Los Cedros and Yasuní prove that even state-backed extraction can be stopped. Neither scenario makes opposition futile — but in Ecuador, do it safely, and plan to enforce your win.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is a real and significant problem in Ecuador — the country has lived through major corruption scandals in its oil and infrastructure sectors — and where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Ecuador has oversight bodies to receive these matters — but handle them carefully, and safely.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the Criminal Code, COIP) — money or favours in exchange for a permit or a favourable decision, or a public servant abusing office for gain (Ecuador's largest scandals have involved bribery in oil contracting and public works).
- **Bought permits or concessions** — an environmental permit, a mining/oil concession, or a protected-area clearance granted in exchange for a benefit.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside — sharpened in Ecuador because **the state is often the developer**.
- **The revolving door** — officials and the state or private developer's staff moving between each other.

- **Improper gifts, hospitality, or campaign funding** flowing from a developer to decision-makers.
- **Manipulated or fabricated studies** — an **EIA** or a "consultation" record skewed or falsified (for example, attendance lists of people never really consulted).
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming project.

Red flags to watch for

- A permit granted despite strong objections and expert concerns, with thin or shifting reasons.
- A **consultation record that doesn't match reality** — attendance lists of people who weren't there.
- Sudden reversals, rushed timelines, or a permit issued quietly (or re-granted right after a court suspends it).
- An official who did not step aside despite a personal interest.
- Off-record meetings, or money, gifts, or campaign funding flowing from the developer to decision-makers.
- The same small circle of firms, consultants (EIA preparers), and officials recurring across permits.
- Information-law requests met with delay or heavy withholding.

How to document and investigate it (follow the money — carefully and safely)

- **Information-law requests** for the permit file, the consultation record, contracts, and correspondence.
- **The Comptroller's (Contraloría) reports** on the agency, the state company, or the project.
- **Company and land records** — who owns/was allocated the affected land and who profits; the company registry.
- **Officials' asset declarations** and campaign-finance records.
- **The consultation record** — check whether the "consultation" and its attendance lists were real.
- **Build a timeline:** allocation, gift, or meeting → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but protect their identities, and remember that in Ecuador exposing powerful interests can be dangerous.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a permit granted through a process tainted by corruption, an undisclosed conflict, or a **falsified consultation** can be **revoked by the courts** (through a protection action or the contentious-administrative route) as unlawful — you do not have to secure a criminal conviction first. Second, the offences can be pursued by the **Attorney-General (Fiscalía)** (criminal) and the **Comptroller (Contraloría)** (fiscal). So documenting a tainted process can be both a **ground to undo the permit** and a matter for the oversight bodies.

Where to report it

- The **Attorney-General (Fiscalía General del Estado)** — for the criminal offences.
- The **Comptroller (Contraloría General del Estado)** — for the misuse of public funds and fiscal harm.
- The **Function of Transparency and Social Control** (including the citizen-participation council and the **Ombudsman/Defensoría del Pueblo**).
- **Investigative outlets** (such as *Plan V*, *GK*, and *La Barra Espaciadora*) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the permit revoked; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the developer's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation and criminalisation.** Ecuador has criminal **defamation** offences (calumnia, injuria), and — as Section 9 warns — a record of **criminalising critics and defenders**; accusing a named person of a crime you cannot prove is legally risky. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Fiscalía / Contraloría in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** The danger is real; keep identities confidential and stay connected to legal and human-rights networks (Section 9).
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a case. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map species/ecosystems, Indigenous territory, and water sources (Step 2); convene the community and form or partner with a vehicle — and **set up a security and legal-support protocol** (Step 3, Section 9); file first **information-law** requests and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; asamblea + turnout for the **consultation + recorded community position** in **rights-of-nature** terms (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, position on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **rights of nature**, the **EIA**, and the consultation (Step 2); expand the coalition, bring in a law group and, if possible, a sympathetic **GAD** (Step 3); prepare the **protection action** and interim-measures grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained marches (Step 3, safely); the permit decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Litigation: marches escalating, safety maintained (Step 3); file the **protection action** and seek **interim measures** (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live, works possibly halted.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); the ruling / positioning, and — crucially — **press for enforcement** of any win (Step 4); media momentum (Step 5). *Outcome:* rights of nature + opposition + media + law compound; revocation, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the mine would clear the forest home to the endangered spider monkey, violating its rights of nature," not "we oppose the project."
2. **Multi-tactic pressure** — consultation + recorded position + rights-of-nature case + opposition + media + protection action, together.
3. **Long-term organising — safely** — sustain 12+ months; prevent burnout and fear; Yasuní held for over a decade and won.
4. **Documentation first** — build the evidence (especially endangered species and fragile ecosystems), then use the consultation and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect Indigenous authorities; win over a sympathetic GAD (they can sue).
6. **Lead with the rights of nature** — the world's-first constitutional rights of nature, enforceable by anyone, are your strongest and most distinctive lever.
7. **Seek interim measures, and plan to enforce** — halt the works meanwhile, and remember a win must be defended and enforced.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or revocation is the bonus; expect state-backed extraction and slow enforcement.
9. **Persistence and safety** — plan for 12-24 months, keep momentum, and protect organisers from criminalisation.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout or fear); coalition members leaving or being co-opted with jobs or "development" offers; no media coverage for 2-3 months; the case stalling or a win left unenforced; fundraising below half your target by month 6; a core organiser leaving without a successor; **charges, threats, or intimidation** against organisers (treat as urgent — see Section 9); or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Permit refused / revoked / project shelved** (rarer, but real): usually needs overwhelming opposition + a strong rights-of-nature or consultation case + heavy media + lower tilt. Los Cedros (mining prohibited) and Yasuní (a referendum against drilling) show even state-backed extraction can be stopped — and also show a win can take years and must be enforced.
- **Permit modified** (most common victory): strict conditions, genuine restoration and compensation, buffers, independent monitoring, redesign — often via MAATE or a court.
- **Delay / attrition:** stalled for years while the case runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes despite a court win or a referendum, given weak enforcement). Focus then shifts to enforcing the ruling, monitoring, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live (especially the rights of nature and consultation), the record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, the security or criminalisation risk has risen, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps a protection action) permit and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, resources are gone — or if the danger to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, restoration, delay)? Would more effort win more, or just prolong the fight? Should energy shift to **enforcing** a win, to the next project, or to the policy? **And always: is it safe to continue?**

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Ecuador — even where oil and mining revenue, and a state that is often the developer, point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers revocations, conditions, restoration, delay, and durable power.

And Ecuador offers a genuinely world-leading equaliser: it was the **first country on earth to give nature constitutional rights**, and **anyone** can go to court to defend them; the fast **protection action** is the vehicle; the **precautionary principle** shifts the ground toward nature; **consultation** rights protect communities and peoples; and — uniquely — a **popular referendum** can vote extraction down, as it did for **Yasuní**. When a project would cause severe or irreversible harm, a court can revoke the permit and halt it — as at **Los Cedros**, where a state-backed mine was stopped in the name of a forest's rights. Such a win must then be **defended and enforced** — but it can be won.

Know your situation. Assess how tilted the system is, honestly, and get current advice as the law is contested. Watch for genuine corruption and refer it to the oversight bodies. **Above all, keep people safe — criminalisation is a real risk in Ecuador, and no project is worth a life or a wrongful prosecution.** Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers, and together.

RESOURCES (verified)

- Legal help and organising:**
- **Acción Ecológica** — long-standing Ecuadorian environmental organisation.
 - **INREDH (Fundación Regional de Asesoría en Derechos Humanos)** — human-rights and defender support and litigation.
 - **YASunidos** — the collective behind the Yasuní referendum; the **Observatorio de Derechos de la Naturaleza**.
 - **CONAIE / CONFENIAE** and Indigenous nationalities' organisations; university law and science clinics.

- The decision and the challenge:**
- The **environmental permit** and **EIA** via **MAATE** (*ambiente.gob.ec*); the mining/energy concession via the sector authority; local competences via the **GAD**.
 - The **protection action** and **interim measures** before the courts; the **Constitutional Court (Corte Constitucional)** — the rights-of-nature forum.

Transparency: the **Transparency and Access to Information Law (LOTAIP)** and Article 18 — request records from any authority; pursue the constitutional information-access action if refused.

Integrity and anti-corruption: the **Attorney-General (Fiscalía General del Estado)** (criminal); the **Comptroller (Contraloría General del Estado)** (fiscal); the **Function of Transparency and Social Control** (including the citizen-participation council and the **Ombudsman / Defensoría del Pueblo**).

Protection and human rights: the **Ombudsman (Defensoría del Pueblo)**; **INREDH**; the **Alianza por los Derechos Humanos**; and the protections of the **Escazú Agreement**. Report threats and charges, and seek legal support, early.

Environmental and accountability media: *El Universo*; *El Comercio*; *Primicias*; *Plan V*; *GK*; *La Barra Espaciadora*; *Wambra*; and **Mongabay Latam**; plus community and Indigenous radio.

Nothing here is legal advice. Ecuadorian environmental, licensing, and constitutional law is technical and — importantly — currently contested (including proposals that could affect the rights of nature), and organising can carry a real risk of criminalisation. Get advice from an Ecuadorian environmental/constitutional lawyer or a public-interest organisation, and seek protection support, before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **Acción de protección (protection action):** the fast, accessible constitutional action to protect constitutional rights, including the rights of nature; it needs no special standing — anyone can bring it — and is the vehicle that stopped Los Cedros.
- **Article 407:** the constitutional provision restricting extractive activities in protected areas and intangible zones.

- **Buen vivir / sumak kawsay:** the constitutional principle of "good living" in harmony with nature, underpinning the rights of nature.
- **Comuna:** a recognised rural community with its own assembly and authorities.
- **Consulta ambiental (environmental consultation):** the consultation of an affected community required in environmental decision-making (Article 398).
- **Consulta popular (popular referendum):** a direct citizen vote; used to halt oil drilling in Yasuní and mining in the Chocó Andino in 2023.
- **Consulta previa (prior consultation):** the free, prior, and informed consultation of an Indigenous people required before a project affecting it (Article 57, ILO Convention 169).
- **Constitutional Court (Corte Constitucional):** the highest constitutional court, which has built the world's leading rights-of-nature case law.
- **EIA (estudio de impacto ambiental):** the environmental impact study a significant project must prepare, prepared by the developer's consultants.
- **Function of Transparency and Social Control:** a distinctive branch of the Ecuadorian state that includes the Comptroller, the Ombudsman, and the citizen-participation council.
- **GAD (Gobierno Autónomo Descentralizado):** a decentralized autonomous government (province, canton/municipality, or parish) — which can itself defend the rights of nature, as Cotacachi did.
- **In dubio pro natura:** the principle that, in case of doubt, environmental rules are interpreted in favour of nature.
- **Información pública / LOTAIP:** the right of access to public information under the Transparency and Access to Information Law.
- **Intangible zone:** a legally untouchable protected area (for example, to protect peoples in voluntary isolation) where extraction is barred.
- **MAATE (Ministry of Environment, Water and Ecological Transition):** the authority that evaluates the EIA and issues the environmental permit.
- **Medidas cautelares (interim measures):** precautionary court orders that can halt works while a case runs.
- **Pachamama:** Mother Earth / nature, recognised by the Constitution as a subject of rights.
- **Precautionary principle:** the principle that a risk of serious or irreversible harm justifies protective action even without full scientific certainty.
- **Rights of nature (derechos de la naturaleza):** the constitutional rights of nature/Pachamama to exist, persist, maintain, and regenerate its cycles (Articles 71-74) — the world's first, enforceable by anyone.
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because the country depends on extraction revenue, because the state is often the developer, or because the developer's own consultants write the study — usually without anyone breaking the law.